



STATE OF IOWA
KIM REYNOLDS
GOVERNOR

May 15, 2026

The Honorable Paul Pate
Secretary of State of Iowa
State Capitol
Des Moines, Iowa 50319

Dear Mr. Secretary,

I hereby transmit:

House File 1036, an Act relating to human trafficking, including screening children, civil statutes of limitations, an annual stakeholder meeting and report, depositions of victims, restitution, restorative facilities and protective services, and investigation and prosecution, and including effective date provisions.

The above House File is hereby approved on this date.

Sincerely,

A handwritten signature in black ink, appearing to read "Kim Reynolds", written over a horizontal line.

Kim Reynolds
Governor of Iowa

cc: Secretary of the Senate
Clerk of the House



House File 1036

AN ACT

RELATING TO HUMAN TRAFFICKING, INCLUDING SCREENING CHILDREN, CIVIL STATUTES OF LIMITATIONS, AN ANNUAL STAKEHOLDER MEETING AND REPORT, DEPOSITIONS OF VICTIMS, RESTITUTION, RESTORATIVE FACILITIES AND PROTECTIVE SERVICES, AND INVESTIGATION AND PROSECUTION, AND INCLUDING EFFECTIVE DATE PROVISIONS.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF IOWA:

Section 1. Section 80.45, subsection 3, Code 2025, is amended by adding the following new paragraph:

NEW PARAGRAPH. *i.* Hold an annual meeting of stakeholders to develop legislative proposals to combat human trafficking, and submit a report, by December 15, 2025, and annually thereafter for a period of five years ending with the submission of the report in 2030, to the governor and general assembly.

Participants shall include the following:

- (1) A representative of the department of public safety.
- (2) A representative of the office to combat human trafficking.
- (3) A representative of the attorney general's office.
- (4) A representative of the department of health and human services.
- (5) A representative of juvenile court services.
- (6) A chief of police or head law enforcement official of a city in this state.
- (7) A county sheriff.

(8) A county attorney who serves on a child protection assistance team under section 915.35, subsection 4, paragraph "a".

(9) A public defender or criminal law attorney with experience working on human trafficking cases.

(10) A member of the public, or the person's legal representative, who is a former human trafficking victim.

(11) A representative from the Iowa network against human trafficking.

(12) A representative from a nonprofit organization whose primary focus is services for human trafficking survivors.

(13) A representative from state court administration with expertise in child welfare law.

Sec. 2. Section 232.2, Code 2025, is amended by adding the following new subsection:

NEW SUBSECTION. 7A. "Commercial sexual exploitation" refers to a range of crimes and activities involving the sexual abuse or exploitation of a child for the financial benefit of any person or in exchange for anything of value including monetary and nonmonetary benefits given or received by any person.

Sec. 3. Section 232.28, subsection 2, Code 2025, is amended to read as follows:

2. a. The court or its designee shall refer the complaint to an intake officer who shall consult with law enforcement authorities having knowledge of the facts and conduct a preliminary inquiry to determine what action should be taken.

b. The court or its designee shall order every complaint to be reviewed using a standardized human trafficking indicator list. The court or its designee may order the child subject to the complaint with the presence of an indicator to be screened for commercial sexual exploitation using a standardized, evidence-based, trauma-informed screening tool.

Sec. 4. Section 232.71B, subsection 1, paragraph a, unnumbered paragraph 1, Code 2025, is amended to read as follows:

If the department determines a report constitutes a child abuse allegation, the department shall promptly have the child subject to the child abuse allegation screened for commercial sexual exploitation using a standardized, evidence-based,

trauma-informed screening tool, and shall commence either a child abuse assessment within twenty-four hours of receiving the report or a family assessment within seventy-two hours of receiving the report.

Sec. 5. Section 614.8, subsection 2, Code 2025, is amended to read as follows:

2. Except as provided in section 614.1, subsection 9, or section 614.8A, the times limited for actions in this chapter, or chapter 216, 659A, 669, or 670, except those brought for penalties and forfeitures, are extended in favor of minors, so that they shall have ~~one year~~ five years from and after attainment of majority within which to file a complaint pursuant to chapter 216, to make a claim pursuant to chapter 669, or to otherwise commence an action.

Sec. 6. Section 614.8A, Code 2025, is amended to read as follows:

614.8A Damages Commencement of action for child or minor sexual abuse or human trafficking — time limitation.

1. Notwithstanding section 614.8, subsection 2, and the times limited for actions in this chapter, the time to file an action related to sexual abuse or human trafficking that occurred when the injured person was a minor is extended to five years beyond the minor's attainment of eighteen years of age.

2. ~~An~~ In addition to the extension of the time provided in subsection 1, an action for damages for injury suffered as a result of sexual abuse ~~which~~ or human trafficking that occurred when the injured person was a child, but not discovered until after the injured person is of the age of majority, shall be brought within ~~four~~ five years from the time of discovery by the injured party of both the injury and the causal relationship between the injury and the sexual abuse or human trafficking.

Sec. 7. Section 710A.1, subsection 4, paragraph a, unnumbered paragraph 1, Code 2025, is amended to read as follows:

"Human trafficking" means ~~participating in a venture to recruit, harbor, transport, supply provisions, or obtain~~ recruiting, harboring, transporting, supplying provisions to,

obtaining, patronizing, or soliciting a person for any of the following purposes:

Sec. 8. Section 725.1, subsection 1, paragraph b, Code 2025, is amended to read as follows:

b. If the person who sells or offers for sale the person's services as a partner in a sex act is under the age of eighteen, the county attorney may elect, in lieu of filing a petition alleging that the person has committed a delinquent act, ~~to refer that person~~ that the person shall not be arrested, charged, or prosecuted for an offense under this section, but instead may be taken into temporary custody under section 232.78 or 232.79 or shall be referred to the department of health and human services for the possible filing of a petition alleging that the person is a child in need of assistance.

Sec. 9. Section 910.1, subsections 1 and 2, Code 2025, are amended to read as follows:

1. *"Category "A" restitution"* means fines, penalties, the payment of crime victim compensation program reimbursements, and surcharges.

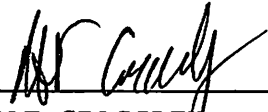
2. *"Category "B" restitution"* means the contribution of funds to a local anticrime organization ~~which that~~ provided assistance to law enforcement in an offender's case, ~~the payment of crime victim compensation program reimbursements,~~ payment of restitution to public agencies pursuant to section 321J.2, subsection 13, paragraph "b", court costs, court-appointed attorney fees ordered pursuant to section 815.9, including the expense of a public defender, and payment to the medical assistance program pursuant to chapter 249A for expenditures paid on behalf of the victim resulting from the offender's criminal activities including investigative costs incurred by the Medicaid fraud control unit pursuant to section 249A.50.

Sec. 10. DEPARTMENT OF HEALTH AND HUMAN SERVICES — RESTORATION FACILITIES. The department of health and human services shall develop a plan in consultation with nonprofit service providers who provide restoration services to victims of human trafficking to increase the availability of restoration facilities and protective services available to juvenile victims of human trafficking, including juvenile

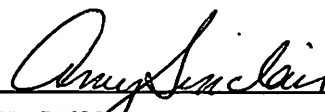
victims who are not, at the time of victimization, either a child in need of assistance or otherwise involved in the juvenile court system. The department shall consider developing a network with other states to provide housing outside of the state for victims at risk of returning to the person involved in the victim's trafficking. The department of health and human services shall present a report detailing the plan to the governor and the general assembly by December 15, 2025.

Sec. 11. EFFECTIVE DATE. The following takes effect July 1, 2026:

The section of this Act amending section 910.1.



PAT GRASSLEY
Speaker of the House

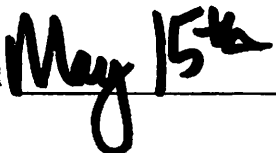


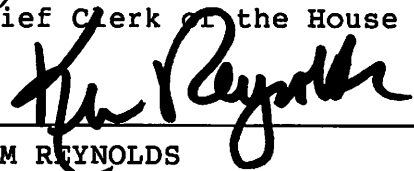
AMY SINCLAIR
President of the Senate

I hereby certify that this bill originated in the House and is known as House File 1036, Ninety-first General Assembly.



MEGHAN NELSON
Chief Clerk of the House

Approved  , 2026



KIM REYNOLDS
Governor